

NON-CANCELLABLE EQUIPMENT AND SOFTWARE LEASE AGREEMENT

Merchant ID	Vendor ID	Sales Rep ID	Lease Number
	{{signer.name}}		

{{signer.signature}}

{{signer.date}}

LESSEE AND MERCHANT INFORMATION

Legal Business Name of Lessee			DBA Name			
Business Location Address		City	County	State	Zip Code	Business Phone Number
Type of Business		Years in Business		FEIN		<u>Business Type</u> ☐ CORPORATION ☐ PARTNERSHIP ☐ PROPRIETORSHIP ☐ NON-PROFIT ☐ LLC
Billing Address (if different from above)		City		State	Zip Code	

VENDOR INFORMATION**DESCRIPTION OF EQUIPMENT/SOFTWARE**

	<u>Manufacturer</u>	<u>Model</u>	<u>Serial Number</u>	<u>Quantity</u>

The equipment together with its related operating software ("Equipment") and the standalone SAAS software ("Software") described above shall be referred to collectively as (the "Property")

SCHEDULE OF PAYMENTS

LEASE TERM IN MONTHS	MONTHLY LEASE PAYMENT (without tax & other charges)	PLUS, APPLICABLE TAXES AND INSURANCE NON-COMPLIANCE FEE OF \$4.95 per month, per unit of Equipment, if applicable as provided in Paragraph 11
	\$	

LEASE ACCEPTANCE AND AUTHORIZATION AGREEMENT FOR AUTOMATIC WITHDRAWAL OF PAYMENTS

Lessee hereby authorizes Tech Capital Group, LLC or its designees, successors or assigns (hereinafter "Lessor") to automatically withdraw monthly lease payment and any amounts, including any and all taxes and other charges now due or hereinafter imposed, owed by Lessee in conjunction with this Non-Cancellable Equipment and Software Lease Agreement (hereinafter "Lease") by initiating debit entries to Lessee's account at the financial institution ("hereinafter "Bank") evidenced on the check copy provided, or such other Bank the Lessee may from time to time use. In the event of default of Lessee's obligation hereunder, Lessee authorizes Lessor to debit its account for the full amount due under this Lease. Further, Lessee authorizes Bank to accept and to charge any debit entries initiated by Lessor to Lessee's account. A lease payment (whether paid by debit or other means) that is not honored by Lessee's Bank for any reason will be subject to a \$10.00 service fee imposed by Lessor. This authorization is to remain in full force and effect until Lessor and Bank have received written notice from Lessee of its termination in such time and in such manner as to afford Lessor and Bank a reasonable opportunity to act.

Bank Name	Routing Number	Account Number	(Provide copy of Void Check)
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Undersigned agrees to all terms and conditions contained in this Lease. Lessee and Guarantor expressly authorize Lessor, its agents or assigns, to request and obtain from consumer credit reporting agencies, personal and business consumer reports concerning Lessee and Guarantor, and has the right to report late payments and defaults to said agencies as deemed appropriate by Lessor. If this Lease is approved by Lessor, the undersigned authorizes Lessor to obtain subsequent consumer reports in connection with the maintenance, updating, renewal or extension of this Lease. The undersigned furthermore agrees that all references, including banks and consumer reporting agencies, may release any and all personal and business credit financial information to Lessor.

THIS IS A NON-CANCELLABLE EQUIPMENT AND SOFTWARE LEASE FOR THE FULL TERM INDICATED HEREIN.

Lessee has received and reviewed a copy of this Lease with all of the Lease terms filled in and a copy of the Term and Conditions.

X			
Lessee Signature	Title	Print Name	Date

PERSONAL GUARANTY

Undersigned unconditionally guarantees performance of this Lease by Lessee and payment of all sums due hereunder in the event of default, hereby waiving any modification, amendment or extension and notice thereof, and further agrees to the terms and conditions of this Lease insofar as they apply to the undersigned as guarantor. The undersigned further agrees that this guaranty is subject to the Forum Selection clause set forth in Section 18 of the terms and conditions and the Arbitration clause set forth in Section 19 of the terms and conditions.

X			
Personal Guarantor's Signature (No Title Allowed)	Print Name	Date	

Home Address	City	State	Zip Code	Home/Mobile Phone Number
Home Email Address			Social Security Number	

DO NOT WRITE IN THIS SPACE

Lessor Acceptance:

		X	
Name (please print or type)	Title	Signature	Date

1. NO WARRANTIES. The Property is subject to any warranties made by the manufacturer of the Equipment or licensor of the Software ("Licensor") and any limitations thereof. The Property is leased "AS IS" and LESSOR IS NOT LIABLE FOR THE PERFORMANCE OF THE EQUIPMENT, THE SOFTWARE, THE LICENSOR OR ANY OTHER PARTY'S FAILURE TO PROVIDE SERVICE. LESSEE ACKNOWLEDGES THAT LESSOR DID NOT MANUFACTURE OR LICENSE THE PROPERTY, NOR DID LESSOR SELECT IT. LESSOR DID NOT REPRESENT THE MANUFACTURER OR THE LICENSOR AND LESSEE SELECTED THE PROPERTY BASED UPON LESSEE'S OWN JUDGEMENT. LESSOR MAKES NO WARRANTIES, EXPRESS OR IMPLIED, INCLUDING WARRANTIES OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE OR NON-INFRINGEMENT. LESSEE AGREES THAT, REGARDLESS OF CAUSE, LESSOR IS NOT RESPONSIBLE FOR, AND LESSEE WILL NOT MAKE ANY CLAIM AGAINST LESSOR FOR, ANY DAMAGES, WHETHER LOST PROFITS, LOST DATA, CONSEQUENTIAL, DIRECT, SPECIAL, PUNITIVE OR INDIRECT, RELATING TO THE PROPERTY. LESSEE AGREES THAT IN THE EVENT OF A BREACH OR DEFAULT UNDER THE LICENSE AGREEMENT, LESSEE'S SOLE REMEDY SHALL BE AGAINST THE LICENSOR. Lessor hereby notifies Lessee that Lessee may have rights under the supply contracts or the License Agreement, and that Lessee may contact the supplier or the Licensor for a description of those rights or any warranties.

2. NON-CONSUMER AND NON-FINANCE LEASE. Lessor and Lessee intend this Lease to be a "true" lease, as defined by Article 2A of the Uniform Commercial Code. Lessee acknowledges that Lessor did not manufacture or license the Property, nor did Lessor select it for Lessee. Lessee selected the Property from the Vendor based upon its own judgment. Lessee may have rights under the supply contract for the Property and it may contact the Vendor or Property Manufacturer for a description of those rights or warranties. Lessor does not provide Lessee with copies of the supply contract or the rights/warranties. Lessee acknowledges that the Property is being leased for commercial purposes only and not for personal, family, or household purposes. Lessee further agrees that neither Lessee nor any guarantor is a "consumer" with respect to this Lease, and neither this Lease nor any guarantee thereof shall be construed as a consumer transaction or as a "consumer lease". This lease is not a "finance" lease.

3. TERM AND LEASE PAYMENT. The Lease term shall commence on the date designated by Lessor after receipt of all required documentation and acceptance by Lessor, (the "Commencement Date"), and shall continue until Lessee's obligations under this Lease shall have been fully performed. Each lease payment shall be payable monthly in advance, the first such payment being due on the date Lessee signs this Lease, or at such later time as agreed to by Lessor, and the second payment shall be due the following month on the day of the month Lessor designates in writing (hereinafter "Payment Day"), and subsequent payments will be due on the Payment Day of each successive month until the balance of the lease payment and any additional amounts or fees chargeable to Lessee under this Lease have been paid in full. All lease payments shall be made to Lessor at the address set forth herein or such other address that Lessor may designate in writing. **LESSEE'S OBLIGATION TO PAY SUCH LEASE PAYMENTS AND ALL OTHER AMOUNTS DUE SHALL BE ABSOLUTE AND UNCONDITIONAL AND IS NOT SUBJECT TO ANY ABATEMENT, SET-OFF, DEFENSE OR COUNTERCLAIM FOR ANY REASON WHATSOEVER, INCLUDING ANY ACTION BY LICENSOR OR ANY OTHER THIRD PARTY.** Lessee hereby authorizes Lessor to insert the serial numbers and other identification data of the Property when determined by Lessor and dates or other omitted factual matters. If a security deposit is indicated above, the same shall be held by Lessor to secure the faithful performance of the terms of this Lease and returned or applied in accordance with Paragraph 15 hereof.

4. ASSIGNMENT. (a) **LESSOR MAY ASSIGN OR TRANSFER THIS LEASE AND/OR ITS INTEREST IN THE PROPERTY WITHOUT NOTICE TO LESSEE.** Any assignee of Lessor shall have all of the rights, but none of the obligations of Lessor under this Lease and Lessee agrees that Lessee will not assert against any assignee of Lessor's any defense, counterclaim or offset that Lessee may have against Lessor. (b) **LESSEE SHALL NOT ASSIGN OR IN ANY WAY DISPOSE OF ALL OR ANY PART OF LESSEE'S RIGHTS OR OBLIGATIONS UNDER THIS LEASE OR ENTER INTO ANY SUBLEASE OF ALL OR ANY PART OF THE PROPERTY WITHOUT LESSOR'S PRIOR WRITTEN CONSENT.**

5. TITLE, QUIET ENJOYMENT. Subject to Lessor's right to assign, Lessor shall at all times retain title to the Property. All documents of title and evidence of delivery shall be delivered to Lessor. Lessee hereby authorizes Lessor to cause a precautionary Uniform Commercial Code Financing Statements, to be filed or recorded and refiled and rerecorded showing Lessor's interest in the Property. So long as Lessee is not in default under any of the terms in this Lease, Lessor agrees that it shall not interfere with Lessee's quiet use and enjoyment of the Property.

6. CARE, USE AND LOCATION. Lessee shall maintain the Property in good operating condition, repair and appearance, and protect the same from deterioration other than normal wear and tear; shall use the Property in the regular course of Lessee's business; shall not make any modification, alteration, addition or improvement to the Property without Lessor's written consent; and shall not remove the Property from the location shown herein without Lessor's written consent. Specifically with respect to the Software, Lessee will not modify, alter or obscure any proprietary notices contained on or within the Software and Lessee shall not: (i) rent, lease, or loan the Software; (ii) electronically transmit the Software (provided, however, that Lessee may install the Software on such servers, hard disk drives or shared drives as may be agreed upon by the parties for use by all authorized users and/or entities, and use of the Software over Lessee's network by authorized users/entities shall not be deemed to be a violation of this Section 6; (iii) modify, disassemble, decompile or reverse engineer the Software or any item or portion thereof; (iv) transfer possession of any copy of the Software to another party; (v) modify, reproduce, duplicate or copy all or any part of the Software, other than in connection with its use by Lessee; or (vi) use the Software in any way not expressly provided for in this Agreement.

7. NET LEASE: TAXES. Lessee agrees that the lease payments payable hereunder by Lessee are to be net to Lessor. Lessee agrees to pay Lessor in advance or reimburse Lessor for all sales, use, excise, personal property, stamp, documentary and ad valorem taxes, license and registration fees, assessments, fines, penalties and similar charges including, but not limited to, UCC filing, recording and re-recording fees, imposed on Lessee or Lessor or incurred by Lessor, for the ownership, use, or possession of the Equipment/Software during the term of this Lease and during the month to month period thereafter, or for the lease payments hereunder (except Lessor's Federal or State income taxes), plus an administrative tax processing fee in the amount of \$2.25 per month. Lessee acknowledges that the monies Lessor collects from this administrative tax processing fee may provide Lessor with a profit. Lessor may estimate the amount of the taxes and charge Lessee for such amount, separately or charge Lessee with a proportional amount with each monthly lease payment hereunder. Unless otherwise agreed to in writing, Lessor shall file required personal property tax returns with respect to the Equipment.

8. INDEMNITY. Lessee shall and does hereby agree to indemnify and save Lessor, its agents, servants, successors, and assigns harmless from any and all liability, damage or loss, including reasonable attorney's fees, arising out of the ownership, selection, possession, leasing, operation, control, use, condition (including but not limited to latent and other defects, whether or not discoverable by Lessee), maintenance, delivery and return of the Property. The indemnity shall continue in full force and effect notwithstanding the termination of this Lease.

9. INSURANCE. Lessee shall keep the Property insured against all risks of loss or damage from any cause whatsoever for not less than the full replacement value thereof. Lessee shall carry public liability insurance, both personal injury and property damage, covering the Property. All such insurance shall be in form and with companies satisfactory to Lessor and shall name Lessor and its assigns as its interest may appear with respect to property damage coverage and as additional insured with respect to public liability coverage. Lessee shall pay the premiums for such insurance and deliver to Lessor satisfactory evidence of insurance coverage required hereunder. The proceeds of such insurance payable as a result of loss or damage to any item of Property shall be applied to satisfy Lessee's obligation as set forth in Paragraph 10 below. Lessee hereby irrevocably appoints Lessor as Lessee's attorney-in-fact to make a claim for, receive payment of and execute and endorse all documents, checks or drafts received in payment for loss or damage under any such insurance policy.

10. RISK OF LOSS. Lessee shall bear the entire risk and be responsible for loss, theft, damage or destruction of the Property from any cause whatsoever after Lessee receives possession of the Property. Lessee will notify Lessor immediately if the Property is lost, destroyed, or stolen, copied, or altered, as applicable. In the event the Property is stolen Lessee shall provide Lessor with a copy of the police report Lessee has filed. If the Property has been partially damaged, Lessor may require that Lessee have it repaired. If Lessor determines it is not repairable, then it will be considered destroyed. The occurrence of any such loss, theft, damage or destruction shall not relieve Lessee of any obligation hereunder.

11. INSURANCE NON-COMPLIANCE. In the event Lessee fails to comply with its obligations under Paragraph 9 of this Lease to deliver to Lessor evidence of insurance naming Lessor as Loss Payee or as an Additional Insured, or upon the cancellation or non-renewal of the required insurance, then Lessee shall be subject to an Insurance Non-Compliance Charge in the amount of \$4.95 per month per unit of Equipment, said amount to be paid with the next monthly lease payment and all subsequent payments due during the remaining term or any renewal term of this Lease, or until such time as satisfactory evidence of insurance coverage has been provided. The

imposition of the Insurance Non-Compliance Charge shall not relieve Lessee of any obligation under Paragraph 9 of this agreement.

12. EVENT OF DEFAULT. If any one of the following events (each a "Default") shall occur, then to the extent permitted by applicable law, Lessor shall have the right to exercise any one or more remedies set forth in Paragraph 13 below, (a) Lessee fails to pay any lease payment or any other amount or payment hereunder when due; or (b) Lessee fails to perform any of the terms, covenants, or conditions of this Lease other than as provided above after ten (10) days written notice.

13. REMEDIES. If a Default occurs, Lessor may do any or all of the following: (a) terminate this Lease; (b) declare all unpaid lease payments until the end of the term of this Lease and other amounts under this Lease immediately due and payable; (c) repossess or render unusable, any Property wherever located, without demand or notice, without any court order or other process of law and without liability to Lessee for any damages occasioned by such action; (d) require Lessee to deliver the Property to a location designated by Lessor; (e) proceed by court action to enforce performance by Lessee of this Lease and/or recover all damages and expenses incurred by Lessor by reason of any Default; or (f) exercise any other right or remedy available at law or in equity, including those of a secured creditor. Lessee shall pay Lessor all costs and expenses (including attorney fees and costs) incurred by Lessor in enforcing any of the terms of this Lease or any of its rights against Lessee. Upon repossession or surrender of any Property Lessor may lease, sell or otherwise dispose of the Property, and apply the net proceeds thereof to the amounts owed to Lessor hereunder, provided that Lessee shall remain liable to Lessor for any deficiency. Lessee agrees that it is commercially reasonable for repossessed Property to be sold at public or private sales (in any state or county selected by Lessor) to dealers or others in lots or pieces (with or without the Property being physically present) at used Property prices. Notwithstanding the foregoing, to the extent the Software is nontransferable or its transfer restricted, Lessee agrees that the Lessor and/or Licensor of the Software shall have no duty to remarket such Software or otherwise mitigate any damages relating to such Software. All rights and remedies are cumulative and may be enforced concurrently. Any delay or failure to enforce Lessor's rights hereunder does not prevent it from enforcing any rights at a later time. Notwithstanding the foregoing, any attorney's fees, costs, or expenses, or costs or expenses of repossession and storage, shall be limited to the highest amount chargeable under applicable law.

14. CHANGE OF NAME, BILLING ADDRESS, BANK ACCOUNT. Lessee will inform Lessor within ten (10) days of any change in Lessee's name, address, billing address, telephone numbers, location of Property, or the bank checking account used for ACH debit. Lessor is authorized to correct any typographic or spelling errors made on the front of this Lease regarding Lessee's address, telephone numbers, bank checking account or the Property leased.

15. END OF LEASE TERM. At the expiration or earlier termination of this Lease Term, Lessee has the following options: (a) Lessee may disconnect and return the Equipment and/or Software, freight prepaid, to Lessor in good repair, condition and working order, in a manner and to a location Lessor designates and all Lessee's right to use the Software shall terminate and this Lease shall terminate, (b) Lessee may purchase the Equipment, but not the Software at the end of the term for fair market value, which is estimated to be up to thirty percent (30%) of the Lease Term times the monthly lease payment, plus any applicable taxes, and return the Software in accordance with option (a) at which time this Lease shall terminate or (c) If Lessee does not elect option (a) or (b) this Lease will continue for a period of one month from its expiration date without the necessity of the execution of any further document. At the end of this additional month, options (a), (b), and (c) will again be available to Lessee. Unless Lessee notifies Lessor in writing 30 days prior to the expiration of the Lease Term, or monthly renewal period, Lessee shall have been deemed to have chosen option (c) (Automatic Renewal for one month).

16. LATE PAYMENTS AND COLLECTION COSTS. If Lessee does not make a payment within 10 days of its due date, Lessee must pay, in addition to the payment, a late charge of \$10.00 for each late payment. Each month the past due payment remains unpaid, an additional late fee of \$10.00 will be assessed. Lessee will pay Lessor's collection costs which include, but are not limited to Lessor's reasonable attorneys' fees, charges for collection letters and collection calls and to charges of collection agencies, courts sheriffs, etc. There will be a processing charge of \$10.00 for any rejected credit card charge, Western Union Phone Pay or other payment method used by Lessor. Payments are applied to late fees and to processing charges first and then to Lease obligations.

17. CONFIDENTIALITY. Lessee agrees that the Software is a proprietary product and constitutes a valuable asset in the form of know-how and confidential information which is the property of Lessor and shall be deemed and considered to be a "Trade Secret". Lessee agrees to keep confidential the contents of the Software and to not cause the disclosure thereof to any parties other than Lessee and its designated employees. The Software and its contents shall be given at least the same protection which Lessee gives its own confidential and "Trade Secret" materials at all times. Lessee further acknowledges its obligation to take reasonable action to ensure that its employees or third-party consultants do not reveal the Software. Confidential information shall mean (i) the Software, and (ii) any information which Lessor discloses to Lessee or Lessee otherwise obtains about the Software, not including publicly available information regarding the Software. Confidential Information shall include, but not be limited to the design, use, operations or process of the Software.

18. MISCELLANEOUS; GOVERNING LAW; FORUM SELECTION. In the event Lessee fails to comply with any provision of this Lease, Lessor shall have the right, but not be obligated, to affect such compliance on Lessee's behalf. All monies expended by Lessor in effecting such compliance shall be deemed to be additional rent, and shall be paid by Lessee to Lessor at the time of the next monthly payment or rent. All notices under this Lease shall be sufficient if given personally or mailed to the party intended at the respective address set forth herein, or at such other address as said party may provide in writing from time to time. Lessor intends and Lessee intends this Lease to be a valid and subsisting legal instrument, and agrees that any provision of this Lease which may be deemed unenforceable shall be modified to the extent necessary to render it enforceable and shall in no way invalidate any other provision or provisions of this Lease, all of which shall remain in full force and effect. This Lease shall be binding when accepted in writing by Lessor and shall be governed by the laws of the State of Illinois, without regard to the conflict of law, rules or principles thereof. **ALL ACTIONS, PROCEEDINGS OR LITIGATION BROUGHT BY LESSEE OR THE GUARANTOR ARISING FROM OR IN ANY WAY RELATED TO THIS LEASE SHALL BE INSTITUTED AND PROSECUTED EXCLUSIVELY IN THE FEDERAL OR STATE COURTS LOCATED IN COOK COUNTY IN THE STATE OF ILLINOIS, NOTWITHSTANDING THAT OTHER COURTS MAY HAVE JURISDICTION OVER THE PARTIES AND THE SUBJECT MATTER.** Unless otherwise prohibited by law Lessee agrees and consents that the Court of the State of Illinois having jurisdiction in Cook County or any Federal District Court having jurisdiction in Cook County shall have the jurisdiction and shall be the proper venue for the determination of all controversies and disputes arising hereunder. Lessee agrees and consents that service of process by registered or certified mail will be sufficient to obtain jurisdiction. Nothing contained herein is intended to preclude Lessor from commencing any action hereunder in any court having jurisdiction thereof.

19. All claims or controversies between the parties related to this Lease, including claims pursuant to the guaranty, but specifically excluding any claims arising under Section 17, which are not otherwise settled by agreement of parties, will be submitted to and decided by arbitration held in Chicago, Illinois in accordance with the rules of the American Arbitration Association. **ALL CLAIMS OR CONTROVERSIES SUBMITTED TO ARBITRATION SHALL BE BROUGHT ON AN INDIVIDUAL BASIS AND SHALL NOT BE CONSOLIDATED WITH THE CLAIMS OF ANY OTHER PARTY. CLASS ARBITRATIONS, CLASS ACTIONS, PRIVATE ATTORNEY GENERAL ACTIONS AND CONSOLIDATION WITH OTHER ARBITRATIONS IS NOT PERMITTED AND LESSEE IS WAIVING ANY RIGHT TO HAVE ANY DISPUTE WITH TECH CAPITAL GROUP, LLC DECIDED BY A JURY AND TO PARTICIPATE IN ANY CLASS ACTION AGAINST TECH CAPITAL GROUP, LLC.** The arbitrator will have the authority to award any remedy or relief that a court in Illinois could order or grant, including without limitation specific performance, issuance of an injunction, or imposition of sanctions for abuse or frustration of the arbitration process. Costs of the arbitration will be paid by the unsuccessful party to the arbitration. The parties agree that anything communicated, exchanged, said, done, or occurring in the course of arbitration, including any private caucus between the arbitrator and any party before or after any arbitration session, will be kept confidential.

20. ENTIRE AGREEMENT: CHANGES. NOTWITHSTANDING ANY AMOUNTS WHICH MAY BE PAID BY LESSOR TO VENDOR OR ANY AGENT OF VENDOR, LESSEE UNDERSTANDS AND AGREES THAT NEITHER VENDOR NOR ANY AGENT OF VENDOR IS AN AGENT OF LESSOR OR IS AUTHORIZED TO WAIVE OR ALTER ANY TERM OR CONDITION OF THIS LEASE. THEIR REPRESENTATIONS SHALL IN NO WAY AFFECT LESSEE OR LESSOR'S RIGHTS AND OBLIGATIONS AS HEREIN SET FORTH. THIS LEASE CONTAINS THE ENTIRE AGREEMENT BETWEEN THE PARTIES AND MAY NOT BE ALTERED, AMENDED, MODIFIED, TERMINATED OR OTHERWISE CHANGED EXCEPT IN WRITING AND SIGNED BY ONE OF LESSOR'S EXECUTIVE OFFICERS.